



Appeal Decision

Site visit made on 14 April 2026

by **L Reid BSc (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 3rd June 2026

Appeal Ref: 6004354

Land to the west of Sladburys Lane, Clacton on Sea, Essex CO15 4BE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mr D Akers against the decision of Tendring District Council.
 - The application Ref is 25/01011/OUT.
 - The development proposed is up to 30 dwellings plus associated infrastructure including a new access onto Sladburys Lane.
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Decision

1. The appeal is allowed and outline planning permission is granted for up to 30 dwellings plus associated infrastructure including a new access onto Sladburys Lane at Land to the west of Sladburys Lane, Clacton on Sea, Essex CO15 4BE in accordance with the terms of the application, Ref 25/01011/OUT, subject to the conditions in the attached schedule.

Applications for costs

2. An application for costs was made by Mr D Akers against the decision of Tendring District Council. This application is the subject of a separate decision.

Preliminary Matters

3. The application is in outline with matters of access, appearance, landscaping, layout and scale reserved for future consideration. I have therefore dealt with the appeal on this basis. Given that all matters are reserved for future consideration, I have treated the submitted plans, which depict access from Sladburys Lane and proposed site layout and storey heights, as being for illustrative purposes only, suggesting how development could be accommodated on the site.
4. The appeal is also accompanied by a planning obligation pursuant to Section 106 of the Town and Country Planning Act 1990 (as amended). It seeks to secure various planning obligations to address the second reason for refusal. The Council has had the opportunity to comment on this and is no longer contesting this reason. The planning obligation shall be considered later in my decision.
5. The first reason for refusal has been split into two separate main issues to clearly distinguish between the different planning concerns and the relevant policy considerations for each.

Main Issues

6. The main issues are:

- The effect of the proposal on the landscape character of the area, with particular regard to the Strategic Green Gap; and,
- Whether the appeal site represents an appropriate location for the proposal, having regard to the spatial strategy in the development plan.

Reasons

Strategic Green Gap

7. The appeal site is a rectangular parcel of land. It is next to a large residential development. On the other side of the road, there is more housing opposite the site. It is visually contained and separated from the surrounding open fields by trees and hedgerows. In some views along Sladburys Lane, the boundary vegetation provides screening, while in other views the site is more readily visible. It is free from buildings and relatively open in character.
8. The site lies within a designated Strategic Green Gap (SGG) between Clacton and Holland-on-Sea. Although not referenced in the Decision Notice, the Council's Delegated Report and Statement of Case refer to Policy PPL6 of the Local Plan Section 2¹, which seeks to protect SGGs in order to retain the separate identity of settlements and prevent their coalescence. The SGG derives its value from its openness and lack of built development, which maintains a clear separation between settlements. It therefore makes a positive contribution to the local landscape character.
9. The proposal would result in the outward expansion of development beyond the existing settlement boundary, leading to the loss of part of the SGG. Based on the appellant's evidence, this equates to around 1.1% of the gap. The proposal would therefore result in the loss of a relatively small portion of the SGG in quantitative terms. However, the introduction of built form would result in physical and visual encroachment into an otherwise open area, diluting the openness that underpins the function of the gap. Whilst the remaining extent of the SGG would continue to perform its strategic role in preventing coalescence and maintaining settlement separation, this erosion of openness would undermine one of its defining characteristics.
10. The appellant's Landscape and Visual Impact Assessment (LVIA)² mainly focuses on how the proposal would be perceived from specific viewpoints, assessing its visual effects. Openness, however, is a broader spatial characteristic, encompassing not only what is visible but also the sense of separation and the undeveloped nature of the land. Although the LVIA concludes that the magnitude of change for all identified receptors would be small to negligible, the proposal would still cause harm to openness through the expansion of the settlement into open land. While landscaping is not a matter under detailed consideration at this stage, and additional planting may provide some mitigation, such measures would not address the permanent loss of openness of the SGG.
11. Reference has been made to a previous appeal decision³ concerning the adjacent housing development. However, the Council advises that this decision predates the adoption of the current development plan. There is nothing substantive before

¹ Tendring District Local Plan 2013 - 2033 and Beyond Section 2 Adopted 25th January 2022 (the Local Plan Section 2)

² Rev 1, Job number: 50344/24, Date 13.08.2025

³ Appeal Ref: APP/P1560/W/17/3169220

me to indicate that this previous scheme was assessed under the same policy context. I therefore give this appeal decision limited weight.

12. For these reasons, I conclude that the proposal would cause harm to the landscape character of the area, with particular regard to the SGG. Whilst the extent of development is confined to the appeal site, which is relatively contained in the wider context, the proposal would nevertheless result in a permanent loss of openness of part of the SGG. Taking these factors together, the degree of harm would be moderate, as substantial areas of the SGG would remain open and undeveloped, continuing to perform its strategic function. Nevertheless, the proposal would conflict with Policy PPL3 of the Local Plan Section 2, which seeks to protect the rural landscape and avoid overriding harm to its character.

Location

13. Policy SP3 of the Local Plan Section 1⁴ sets out the spatial strategy for North Essex and directs growth towards existing settlements with development accommodated within or adjoining settlements according to their scale, sustainability and existing role both within each individual district and, where relevant, across the wider strategic area. Policy SPL1 of the Local Plan Section 2 sets out the settlement hierarchy to manage growth, with Clacton-on-Sea identified as a Strategic Urban Settlement and Garden Community.
14. The appeal site lies outside the settlement boundary, but it is adjacent to the edge of the Defined Settlement Boundary of Clacton-on-Sea. Policy SLP2 of the Local Plan Section 2 states that outside of Settlement Development Boundaries, the Council will consider any planning application in relation to the pattern and scales of growth promoted through the settlement hierarchy in Policy SPL1 and any other relevant policies in the plan.
15. When read together, these policies aim to direct new housing to accessible and sustainable locations with access to a range of services. They do not impose an absolute restriction on housing outside settlement boundaries, as they explicitly refer to development adjoining settlements and therefore allow for consideration of proposals beyond defined settlement boundaries.
16. Although the appeal site is not allocated for development, it lies immediately outside a settlement identified as the most sustainable location for growth, as set out in the supporting text to Policy SPL1. The site is well related to a large settlement and is experienced on the ground as adjoining it, as a result of the substantial housing development that has taken place immediately adjacent to the site. As acknowledged by the Council, the site also benefits from good access to a wide range of facilities and services, which are accessible on foot or by public transport.
17. When having regard to the planned scale and pattern of growth, the quantum of development of up to 30 dwellings, would be of an appropriate scale given the size of the adjacent settlement, which sits at the top of the settlement hierarchy and is intended to accommodate the largest proportion of the District's housing growth. Furthermore, the site is within an accessible location, with opportunities for travel

⁴ Tendring District Local Plan 2013 - 2033 and Beyond North Essex Authorities' Shared Strategic Section 1 Plan Adopted January 2021 (the Local Plan Section 1)

by non-car modes. The proposal would therefore accord with the Council's spatial strategy for the distribution of housing.

18. In the Delegated Report, the Council has referred to the Local Plan Review Spatial Strategy. I have seen nothing to indicate that an emerging plan has been submitted for examination. I have therefore relied on the policies referred to in the adopted development plan.
19. For these reasons, I conclude the appeal site represents an appropriate location for the proposal, having regard to the spatial strategy in the development plan. Accordingly, it complies with Policy SP3 of the Local Plan Section 1 and Policies SPL1 and SPL2 of the Local Plan Section 2. These policies, amongst other things, seek to ensure that housing development outside settlement boundaries is appropriately located in sustainable locations and in accordance with the settlement hierarchy.

Other Matters

Planning Obligation

20. The appellant has provided a planning obligation which includes a number of obligations which would come into effect if planning permission were to be granted. I have considered the obligations in light of the National Planning Policy Framework (the Framework), Planning Practice Guidance (the PPG) and the Community Infrastructure Levy Regulations 2010 (the CIL Regulations). These state that a planning obligation must be necessary to make the development acceptable in planning terms, directly related to the development and fairly and reasonably related in scale and kind to the development.
21. The planning obligation secures the provision of affordable housing to comply with Policy LP5 of the Local Plan Section 2, and a financial contribution to the Essex Coast Recreational Disturbance Avoidance Mitigation Strategy (Essex Coast RAMS) to comply with Policy SP2 of the Local Plan Section 1 and Policy PPL4 of the Local Plan Section 2. It also includes a financial contribution towards the Council's costs in monitoring the implementation and ongoing compliance of the Biodiversity Gain Plan and the associated Habitat Management and Monitoring Plan. The requirement for these contributions has been set out in the Council's CIL Compliance Statement. A District Council monitoring fee is also included within the planning obligation to be paid towards administration costs.
22. These obligations accord with the criteria of Regulation 122 of the CIL Regulations and with paragraph 58 of the Framework. I can therefore reasonably take them into account.

Habitats Sites

23. The appeal site is within the Zone of Influence (Zol) of the Essex Estuaries Special Area of Conservation (SAC) and the Colne Estuary (Mid-Essex Coast Phase 2) Ramsar site. It additionally falls within the Zol of the Colne Estuary Special Protection Area (SPA), the Blackwater Estuary SPA and Ramsar, the Hamford Water SPA and Ramsar, and the Dengie SPA and Ramsar. The qualifying features of these Habitat sites are their internationally important numbers of breeding and non-breeding birds and their coastal habitats.

24. The conservation objectives for each Habitat site are similar in the sense that they focus on ensuring that the integrity of the site is maintained or restored as appropriate and on ensuring that the site contributes to the conservation of its qualifying features. As identified in the East Coast RAMS Supplementary Planning Document 2020, these Habitat sites are experiencing recreational disturbance.
25. These Habitat sites are protected under the Conservation of Habitats and Species Regulations 2017 as amended (the Habitats Regulations). As such, it is incumbent upon me as the competent authority to ensure that there are no significant adverse effects from the proposed development, either alone or in combination with other projects, that would adversely affect the integrity of the aforementioned Habitat sites.
26. Since the proposal is for up to 30 dwellings, the number of additional recreational visitors would be modest. However, in combination with other developments, the proposal would likely have significant adverse effects on the Habitat sites due to the potential of increased disturbance through recreational activity. Consequently, the Habitats Regulations place a duty on the competent authority to undertake an Appropriate Assessment (AA) of the implications of the appeal scheme in view of the site's conservation objectives.
27. The Essex Coast RAMS sets out a strategic approach to mitigation measures through financial contributions at a specified tariff per dwelling. Since these include a range of habitat-based measures such as education, communication and monitoring, and have been endorsed by Natural England, I am satisfied that the measures would adequately overcome any adverse effects of the proposal on the Habitat sites.
28. The planning obligation requires the appellant to pay a financial contribution per dwelling to fund the Essex Coast RAMS. Given the evidence before me, I am satisfied that the mitigation measures would be secured and would be used for their intended purpose. As such, the contribution towards the mitigation scheme would count as mitigation towards maintaining the integrity of the Habitat sites. I therefore find within my AA that, with the mitigation, the proposal would not have an adverse significant effect on the integrity of the Habitat sites and would therefore comply with the Habitats Regulations.

Third party representations

29. I have considered the range of matters raised in the objections received to the planning application including issues such as traffic and highway safety, flood risk, pressure on infrastructure and the harm to ecology and wildlife. However, there is no compelling evidence before me that there would be harm in respect of these matters, and no objection has been raised by the Council or statutory consultees in regard to these matters. Some matters relating to design and the impact on residential amenity would be considered as part of the reserved matters application. Drainage and construction activities could also be effectively dealt with through relevant planning conditions. Regarding concerns about piecemeal development and the potential for setting a precedent, each planning application must be assessed on its own merits, taking into account the development plan and any material considerations.

Planning Balance

30. The proposal would provide up to 30 dwellings, including affordable housing provision. This would support the Government's objective of significantly boosting the supply of homes and would make a valuable contribution to meeting the District's housing needs. These benefits attract significant weight.
31. The construction of the proposal would deliver both temporary and permanent economic benefits, including employment and spend during construction. The addition of up to 30 dwellings in a location close to facilities and services would provide a boost to the viability and vitality through increased footfall to local businesses, as well as spending and support for local services by future occupiers. There are clear social and economic benefits that weigh in favour of the scheme, to which I attach significant weight.
32. As landscaping is a reserved matter, the precise details of mitigation and enhancement are not yet established. It cannot be determined with certainty that such measures would deliver meaningful environmental benefits. Consequently, only limited weight can be attributed to these potential benefits at this stage.
33. The appeal site represents an appropriate location for the proposal, having regard to the spatial strategy in the development plan and complies with Policy SP3 of the Local Plan Section 1 and Policies SPL1 and SPL2 of the Local Plan Section 2. However, it would cause harm to the landscape character of the area, with particular regard to the SGG and therefore conflicts with Policy PPL3 of the Local Plan Section 2. I have judged the magnitude of harm as moderate.
34. The Framework requires developments to be sympathetic to local character, including the surrounding landscape setting. Policy PPL3 of the Local Plan Section 2 aligns with the aims of the Framework. The conflict with this policy should therefore be given considerable weight. The proposal would therefore conflict with the development plan as a whole.
35. The Council cannot currently demonstrate a five-year supply of deliverable housing sites, with a supply of 3.22 years. In these circumstances, paragraph 11d of the Framework and footnote 8 establishes that the policies which are most important for determining the application are deemed out-of-date. Consequently, permission should be granted unless any adverse impacts of doing so would significantly and demonstrably outweigh the benefits, when assessed against the policies in the Framework taken as a whole, having particular regard to key policies for directing development to sustainable locations, making effective use of land, securing well-designed places and providing affordable homes, individually or in combination.
36. The Framework promotes an effective use of land in meeting the need for homes in locations where sustainable transport modes are prioritised. Although the appeal site is located beyond the settlement boundary, I am of the view that it is not in an unsustainable location and would not be contrary to the aims of the Framework. Given the Council's housing land supply position, it is evident that there is a pressing need for housing when considering the extent of the shortfall. The identified benefits associated with the delivery of up to 30 dwellings, given the Council's housing delivery position, collectively would be substantial.
37. Overall, the moderate adverse impacts arising from the proposal would not significantly and demonstrably outweigh the benefits when assessed against the policies in the Framework taken as a whole. As a result, the presumption in favour of sustainable development does apply.

Conditions

38. The Council has supplied a list of suggested conditions. I have considered these in light of the tests in the Framework and the PPG. Where appropriate, I have adjusted the wording of the conditions to improve relevance, precision and enforceability.
39. I have attached conditions relating to the submission of reserved matters [1] and the time limits associated with this [2] and [3], along with a condition listing the approved plans to provide certainty [4].
40. To protect amenity and highway safety, a construction methodology and timetable plan is required [5]. In the interests of flooding, a surface water drainage scheme [6] and a scheme to minimise surface water run-off and groundwater during construction are necessary [7].
41. As the appeal site lies within an area recorded on the Essex Historic Environment Record as containing evidence for archaeological remains, to safeguard archaeological assets, it is necessary to require an archaeological evaluation to be carried out [8], and for the results to be submitted to determine whether further investigations and works are required [9]. For the same reasons, analysis, publication and dissemination of results and archive deposition from the archaeology investigations are required [10]. It is not necessary to require the archaeology evaluation, and if required the Written Scheme of Investigation, to be completed, submitted and approved prior to the dwellings being occupied, as this is effectively covered by Condition Nos. 6 and 7.
42. Conditions 5, 6, 7, 8 and 9 are 'pre-commencement' form conditions and require certain actions before the commencement of development. The appellant has given their written consent.
43. It is necessary to require offsite works to be carried out to provide safe access and promote sustainable modes of transport [11]. I have not imposed parts 1–3 of the Council's suggested condition, which relate to the information to be included in the reserved matters application for access, as these are matters to be addressed at the reserved matters stage. To further promote sustainable modes of transport, a residential travel information pack should be provided [12].
44. To protect existing trees, shrubs and hedges, the development must be carried out in accordance with the tree survey and constraints plan [13]. To conserve and enhance protected and priority species and habitats, the development should be carried out in accordance with the relevant supporting ecological documents [14], with a biodiversity enhancement strategy [15] and lighting details to be submitted and approved [16].
45. To enhance the sustainability of the development, a condition relating to water and energy and resource efficiency measures is necessary to ensure the development will accord with Policies PPL5 and PPL10 of the Local Plan Section 2 [17]. I have not included the list of details suggested by the Council for this condition as there is insufficient evidence to demonstrate that all these would be required.
46. I have not imposed the condition relating to local recruitment, as there is no reasoning for why it is necessary to make the development acceptable. It is also not necessary to include a condition for a biodiversity net gain plan as due to the

provisions of Schedule 7 of the Town and Country Planning Act 1990, and as none of the statutory exemptions apply in this case, the development may not be begun unless a biodiversity gain plan has been submitted to and approved by the local planning authority.

Conclusion

47. The proposal would conflict with the development plan but material considerations, including the Framework, indicate that a decision should be made other than in accordance with it. Therefore, the appeal should be allowed.

L Reid

INSPECTOR

SCHEDULE OF CONDITIONS

1. Details of the access, appearance, landscaping, layout, and scale ("the reserved matters") shall be submitted to and approved in writing by the Local Planning Authority before any development takes place and the development shall be carried out as approved.
2. Application for approval of the reserved matters shall be made to the Local Planning Authority not later than three years from the date of this permission.
3. The development hereby permitted shall take place not later than two years from the date of approval of the last of the reserved matters to be approved.
4. The development hereby permitted shall be carried out in accordance with drawing nos: Location Plan.
5. No development shall commence until details of a construction methodology and timetable shall be submitted to and approved in writing by the Local Planning Authority. This shall incorporate the following information:-
 - a. Details of the hours of work/construction of the development within which such operations shall take place, and the hours within which delivery/collection of materials for the said construction shall take place at the site.
 - b. Details of the loading/unloading/storage of construction materials on site, including details of their siting and maximum storage height.
 - c. Details of how construction, worker traffic and parking shall be managed. This shall include the intended routing of HGV traffic on the surrounding road network, programme of restoration works to soft highway verges, and any directional signs to be installed and where.
 - d. Details of any protection measures for footpaths and trees surrounding the site.
 - e. Details of all access points to be used to access the site during construction only and any staging of provision.
 - f. Details of the scheduled timing/phasing of development for the overall construction period.
 - g. Details of measures to control the emission of dust and dirt during construction, including details of any wheel washing to be undertaken, management and location it is intended to take place.
 - h. Details of the siting of any on site compounds and portaloo's.
 - i. Details of the method of any demolition to take place, including the recycling and disposal of said materials resulting from demolition.
 - j. Site waste management plan (that shall include reuse and recycling of materials).
 - k. Scheme for sustainable construction management to ensure effective water and energy use.

- l. Scheme of review of complaints from neighbours.
- m. Registration and details of a Considerate Constructors Scheme to be joined prior to the commencement of development, and confirmation of registration to be provided in writing to the LPA before the start of works, or similar scheme for which full details shall be provided and complied with.
- n. Details on the provision, location and management of any show home/s or reception, including opening times, parking and advertisements (including flags and directional signs).
- o. Before and after condition survey to identify defects to the highway in the vicinity of the access to the site, and where necessary, ensure repairs are undertaken at the developer's expense when caused by the developer.

The development shall thereafter be carried out in accordance with the approved details.

6. No development shall commence until a detailed surface water drainage scheme for the site, based on sustainable drainage principles and an assessment of the hydrological and hydro geological context of the development, has been submitted to and approved in writing by the Local Planning Authority. The scheme should include but not be limited to:
- a. Verification of the suitability of infiltration of surface water for the development. This should be based on infiltration tests that have been undertaken in found in chapter 25.3 of The CIRIA SuDS Manual C753.
 - b. Limiting discharge rates to 2.2l/s for all storm events up to and including the 1 in 100 year plus 45% allowance for climate change storm event subject to agreement with the relevant third party. All relevant permissions to discharge from the site into any outfall should be demonstrated.
 - c. Provide sufficient storage to ensure no off site flooding as a result of the development during all storm events up to and including the 1 in 100 year plus 45% climate change event.
 - d. Demonstrate that all storage features can half empty within 24 hours for the 1 in 30 plus 45% climate change critical storm event.
 - e. Final modelling and calculations for all areas of the drainage system.
 - f. The appropriate level of treatment for all runoff leaving the site, in line with the Simple Index Approach in chapter 26 of the CIRIA SuDS Manual C753.
 - g. Detailed engineering drawings of each component of the drainage scheme.
 - h. A final drainage plan which details exceedance and conveyance routes, FFL and ground levels, and location and sizing of any drainage features.
 - i. An updated drainage strategy incorporating all of the above bullet points including matters already approved and highlighting any changes to the previously approved strategy.

The development shall be carried out in accordance with the approved details.

7. No development shall commence until a scheme to minimise the risk of offsite flooding caused by surface water run-off and groundwater during construction works and prevent pollution has been submitted to, and approved in writing by the Local Planning Authority.

The development shall be carried out in accordance with the approved details.

8. No development shall commence until a scheme of archaeological evaluation of the site, including timetable, has been submitted to and approved in writing by the Local Planning Authority (including any demolition needing to be carried out as necessary in order to carry out the evaluation).

The evaluation shall be carried out as approved.

9. No development shall commence until a written report on the results of the archaeology evaluation of the site has been submitted to the Local Planning Authority and confirmation by the Local Planning Authority has been provided that no further investigation work is required in writing.

Should the Local Planning Authority require further investigation and works, no development shall take place on site until the implementation of a full programme of archaeological work has been secured, in accordance with a Written Scheme of Investigation which has been submitted to and approved in writing by the Local Planning Authority.

The scheme of investigation shall include an assessment of significance and research questions; and

- a. The programme and methodology of site investigation and recording.
- b. The programme for post investigation assessment.
- c. Details of the provision to be made for analysis of the site investigation and recording.
- d. Details of the provision to be made for publication and dissemination of the analysis and records of the site investigation.
- e. Details of the provision to be made for archive deposition of the analysis and records of the site investigation; and
- f. Nomination of a competent person or persons/organisation to undertake the works set out within the Written Scheme of Investigation.

The Written Scheme of Investigation shall be carried out as approved.

10. Should a Written Scheme of Investigation be required, no part of the development hereby permitted shall be occupied until analysis, publication and dissemination of results and archive deposition from the archaeology investigations as agreed under the Written Scheme of Investigation has taken place, unless an alternative agreed timetable or phasing for the provision of results is agreed in writing by the Local Planning Authority.

11. No part of the development hereby permitted shall be occupied until details concerning the off-site works have been submitted to and approved in writing by the Local Planning Authority. These submitted details shall include:
- a. The provision of a footway between the access on Sladburys Lane and the existing junction serving Edwin Giles Way. Should it be demonstrated that this route is not feasible due to physical constraints, details of an alternative pedestrian route providing a safe and convenient route must be provided.
 - b. A footpath between the site and the existing open space and play area within the Edwin Giles Way development.

The approved offsite works shall be carried out in full accordance with the approved details and completed prior to the occupation of any dwelling.

12. A Residential Travel Information Pack shall be provided to the first occupiers of each dwelling prior to its first occupation. The content of the Travel Information Pack shall be agreed in writing by the Local Planning Authority before its distribution and shall include, as a minimum, six one day travel vouchers for use with a local public transport operator.
13. The development shall be carried out in accordance with the Tree Survey Schedule and Constraints Plan (TPS, December 2024). This shall include full compliance with the tree protection method statement and tree protection plan during the construction phases of the development. No alterations or variations to the approved works or tree protection schemes shall be made without prior written consent of the Local Planning Authority.
14. All mitigation measures and/or works shall be carried out in accordance with the details contained within: Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025) and Biodiversity Net Gain (Liz Lord Ecology, Rev A, June 2025).

This will include the appointment of an appropriately competent person e.g. an ecological clerk of works (ECoW) to provide on-site ecological expertise during construction. The appointed person shall undertake all activities, and works shall be carried out, in accordance with the approved details.

15. No development above ground level shall take place until a Biodiversity Enhancement Strategy for protected and Priority species is submitted to and approved in writing by the Local Planning Authority. The content of the Biodiversity Enhancement Strategy shall include the following:
- a. Purpose and conservation objectives for the proposed enhancement measures;
 - b. Detailed designs to achieve stated objectives;
 - c. Locations of proposed enhancement measures by appropriate maps and plans;
 - d. Persons responsible for implementing the enhancement measures;
 - e. Details of initial aftercare and long-term maintenance (where relevant).

The works shall be implemented in accordance with the approved details prior to occupation of the development hereby permitted and thereafter retained.

16. Prior to the occupation of the development hereby permitted a lighting design scheme for biodiversity shall be submitted to and approved in writing by the Local Planning Authority.

The scheme shall identify those features on site that are particularly sensitive for bats and that are likely to cause disturbance along important routes used for foraging; and show how and where external lighting will be installed (through the provision of appropriate lighting contour plans and technical specifications) so that it can be clearly demonstrated that areas to be lit will not disturb or prevent bats using their territory.

All external lighting shall be installed in accordance with the specifications and locations set out in the scheme and maintained thereafter in accordance with the scheme. Under no circumstances should any other external lighting be installed without prior consent from the Local Planning Authority.

17. Concurrently with the first reserved matters, a scheme for the provision and implementation of water, energy and resource efficiency measures for the lifetime of the development shall be submitted to and approved in writing by the Local Planning Authority.

The scheme shall be fully implemented prior to the first occupancy of each individual plot unless otherwise agreed in writing by the Local Planning Authority.

END OF SCHEDULE